

Telangana (Compulsory Teaching and Learning of Telugu in Schools) Act, 2018

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State of Telangana - Act

Telangana (Compulsory Teaching and Learning of Telugu in Schools) Act, 2018

TELENGANA

India

Telangana (Compulsory Teaching and Learning of Telugu in Schools) Act, 2018

Act 10 of 2018

Published on 30 March 2018

Commenced on 30 March 2018

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Telangana (Compulsory Teaching and Learning of Telugu in Schools) Act, 2018

(Act

No. 10 of 2018

)

[Dated 30th March, 2018]

Received the assent of the Governor on the 29th March, 2018.

An Act to provide for making Teaching and Learning Telugu language as compulsory in the State of Telangana and for matters connected therewith or incidental thereto.

Be it enacted by the Legislature of the State of Telangana in the Sixty-ninth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Telangana (Compulsory Teaching and Learning of Telugu in Schools) Act, 2018.

(2)

It extends to the whole of the State of Telangana.

(3)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

"Academic Year" means the year commencing on the first day of month notified by the Government;

(2)

"competent authority" means the competent authority appointed by the Government under section 7;

(3)

"Government" means the State Government;

(4)

"Notification" means a notification published in the Telangana Gazette and the word 'notified' shall be construed accordingly;

(5)

"prescribed" means prescribed by rules, made by Government;

(6)

"school" means,-

(a)

any primary, upper primary/middle school and high school/secondary school/senior secondary school maintained by the State or Local Bodies; or

(b)

any primary, upper primary/middle school and high school/secondary school established and administered or maintained by any private educational agency including minority school established and administered under clause (1) of article 30 of the Constitution of India whether receiving aid from out of the State Fund or not; or

(c)

any Primary School, Matriculation School, Anglo- Indian School or Oriental School including minority school established and administered under clause (1) of article 30 of the Constitution of India whether receiving aid from out of the State Fund or not; or

(d)

such other school as may be notified by the Government in this behalf,

Explanation. - For the purpose of this clause,-

(i)

Primary School shall consist of Classes 1 to 5/ Standards I to V;

(ii)

Upper Primary shall consist of Classes 1 to 8 or 6 to 8 / Standards I to VIII or Standards VI to VIII;

(iii)

High School shall consist of Classes 1 to 10 or 6 to 10 or 9 and 10 / Standards I to X or VI to X or IX and X;

(iv)

Higher or Senior Secondary schools shall consist of Standards I to XII, VI to XII or Standards IX to XII;

(7)

"State" means the State of Telangana.

3.

Telugu as a Compulsory Subject.

(1)

Telugu shall be taught as a compulsory subject from Classes 1 to 10 / Standard I to Standard X in all schools, commencing from the Academic Year, 2018-19 in a phased manner, as specified in the Schedule.

(2)

The curriculum etc. to be followed in all schools shall be as specified in the Schedule.

4.

Implementation of teaching and learning Telugu language in phased manner.

(1)

The schools affiliated to CBSE or ICSE or IB or Cambridge Boards in the State of Telangana shall implement the Telugu language as provided in the Act.

(2)

Telugu language shall be,-

(a)

At school level,-

(i)

a compulsory subject from Standard I to Standard X;

(ii)

introduced at Standard 1 in Primary Schools and Standard VI in the High Schools from the Academic Year 2018-19 and shall be extended for further Classes progressively as specified in the Schedule.

5.

State Government Text Books.

- Every school shall compulsorily follow the text books prescribed by the Government.

6.

Exemptions.

- The Government may, by general or special order, exempt any class or category of student or students from all or any of the provisions of this Act either in part or in whole, subject to such conditions as they may deem fit.

7.

Competent Authority.

(1)

The Government may, by notification, appoint any officer of the Education Department not below the rank of District Educational Officer to be the Competent Authority for the purposes of carrying out the provisions of this Act and the rules made thereunder and different competent authorities may be appointed for different areas.

(2)

The Competent Authority shall exercise such powers and perform such functions as may be prescribed.

8.

Competent Authority to be public servant.

- A competent authority appointed under section 7 shall be deemed to be public servant within the meaning of section 21 of the Indian Penal Code, 1860, (Central Act 45 of 1860.)

9.

Power of the Government to give directions.

(1)

(a)

The Government may, in the public interest, by order, direct the Competent Authority to make an enquiry or to take appropriate proceedings under this Act in any case specified in the order, and the Competent Authority shall report to the Government the result of the enquiry made or the proceedings taken by him within such period, as may be prescribed.

(b)

On receipt of the report from the Competent Authority under clause (a), the Government shall give such direction as they may deem fit and such direction shall be final and binding.

(2)

The Government may give such directions to such authority as may appear to them to be necessary for carrying out any of the provisions of this Act or of any rule, notification or order made thereunder and such authority shall comply with

every such direction.

10.

Bar of Jurisdiction.

- No order passed or proceedings taken under the provisions of this Act shall be called in question in any Court, in any suit, or application and no injunction shall be granted by any Court in respect of any action taken or about to be taken in pursuance of any power conferred by or under this Act.

11.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the Government may make such order not inconsistent with the provisions of this Act as may appear to them to be necessary or expedient for the purpose of removing such difficulty.

12.

Over-riding effect.

- The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or rules or orders made thereunder.

13.

Protection of acts done in good faith.

- No suit, prosecution or other legal proceeding shall be instituted against the Government or its officers, Competent Authority or any authority or any person empowered to exercise the powers or perform the functions by or under this Act for anything which is in good faith done or intended to be done under this Act or the rules or orders made thereunder.

14.

Power to amend the Schedule.

(1)

The Government may, if it is of the opinion that it is expedient or necessary so to do, by notification add to or alter or amend the Schedule and on notification, the Schedule shall stand amended accordingly.

(2)

Any such notification issued under sub-section (1) shall be laid on the Table of the State Legislature.

15.

Power to make rules.

(1)

The Government may, by notification make rules for carrying out all or any of the purposes of this Act.

(2)

Every rule made under this Act, shall immediately after it is made, be laid before the Legislature of the State, if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if before the expiration of the session in which it is so laid or the session immediately following, the Legislature agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

Schedule

I. Primary Level (Classes 1 to 5/ Standards I to V)

Medium

Management

Details of the subjects

Details of implementation

(a) Telugu

Government, Aided & Private Schools of

Telangana State With State Syllabus.

Part-1- Languages

(a) Telugu

(b) English

Part-II-Subjects

other than languages

Part-III-Co-curricular Subjects

For Classes 1 to 5 from the Academic Year,
2018-19

Government, Aided & Private Schools of Telangana State With State Syllabus.

Part-1- Languages

(a) Telugu

(b) English

Part-II-Subjects

other than languages

Part-III-Cocurricular Subjects

For Classes 1 to 5 from the Academic Year,
2018-19

(b) English

Private Schools/Central Schools with CBSE,
ICSE, IB and Cambridge syllabus

Part-1- Languages

(a) Telugu

(b) English

(c) any other

language (as per the Board concerned)

Part-II-Subjects

other than languages

Part-III-Co-curricular Subjects

From the Academic Year 2018-19, Telugu shall be
introduced as compulsory subject for Standard I and every year
it will be extended to further Standards progressively.

(c) Other Medium Schools

Government, Aided & Private Schools of
Telangana State With State Syllabus.

Part-1-Languages

(a) Telugu

(b) English

(c) Mother tongue of
students

Part-II-Subjects

other than languages

Part-III-Co-curricular Subjects

From the Academic Year 2018-19, Telugu shall be
introduced as compulsory subject for Class I and every year it
will be extended to further Classes progressively

II. High School level (Classes 6 to 10 / Standards VI to X)

Medium

Management

Details of the Subjects

Details of implementation

(a) Telugu

Government, Aided & Private Schools of
Telangana State With State Syllabus.

Part-1-Languages

(a) Telugu

(b) Hindi/Urdu

/Sanskrit

(c) English

Part-II-Subjects

other than languages

Part-III-Co-curricular Subjects

For Classes 6 to 10 from the Academic Year,
2018-19

Government, Aided & Private Schools of
Telangana State With State Syllabus

Part-1-Languages

(a) Telugu

(b)

Hindi/Urdu/Sanskrit

(c) English

Part-II-Subjects

other than languages

Part-III-Co-curricular Subjects

For Classes 6 to 10 from the Academic Year,
2018-19

(b) English

Private Schools/Central Schools with CBSE,
ICSE, IB and Cambridge syllabus

Part-1-Languages

(a) Telugu

(b) English

(c) any other

language(as per the Board concerned)

Part-II-Subjects

other than languages

Part-III- Co-curricular Subjects

From the Academic Year 2018-19, Telugu shall be
introduced as compulsory Standard VI and every year it will be
extended to further Standards progressively

(c) Other Medium

Government, Aided & Private Schools of
Telangana State With State Syllabus

Part-1- Languages

(a) Telugu

(b) Mother tongue of

the students/Urdu Hindi/Sanskrit

(c) English

Part-II-Subjects

other than languages

Part-III- Co-curricular Subjects

From the Academic Year 2018-19, Telugu shall be
introduced as compulsory subject for Class 6 and every year it
will be extended to further Classes progressively

As per the G.O.Ms.No, 17, School Education (PE-Prog II) Department dated 14.05.2014, Continuous Comprehensive
Evaluation (CCE) is being implemented in the Schools with State Syllabus from Classes 1 to 10 in Telangana State.

Accordingly, as a part of evaluation, Assessments should be conducted for the subjects of Part I & II, for all these schools. In the case of Class 10 Examination, it is mandatory to get minimum qualifying marks in these subjects. In the case of evaluation of Part - III subjects, the progress of the students should be recorded in terms of grades instead of marks in these schools for Class 10 Examination.

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